

Court No. - 39

Case :- WRIT - C No. - 1950 of 2019

Petitioner :- Santosh Kumari

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Babu Lal Ram, Virendra Kumar

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble B. Amit Sthalekar, J.

Hon'ble Suresh Kumar Gupta, J.

Heard Sri Babu Lal Ram, learned counsel for the petitioner, learned Standing Counsel for the respondents no. 1 & 2 and Sri Mukesh Kumar Singh, learned counsel for the respondents no. 3 & 4.

The petitioner in the writ petition is seeking quashing of the demand notice dated 12.12.2018/15.12.2018. Earlier the petitioner filed writ petition no. 34740 of 2018 challenging the demand notice of Rs.379636/-. That writ petition was disposed of by the Court vide order dated 30.10.2018 with a direction to the Executive Engineer to decide the petitioner's objection filed under Section 6.5 of the Electricity Supply Code, 2005. According to the petitioner, she has filed her objection dated 28.11.2018 before the Executive Engineer, Electricity Power Distribution, Madhyanchal Vidyut Vitran Khand-II, District Budaun, respondent no. 3 but without passing any order a fresh demand notice, which is impugned in the present writ petition, has been issued.

Counsel for the respondents no. 3 & 4 is directed to obtain instructions in the matter as to whether petitioner's objection dated 28.11.2018 has been disposed of or not and if disposed of, what order has been passed.

Put up as fresh on 31 January, 2019 to enable the counsel for the respondents no. 3 & 4 to obtain instructions in the matter.

Order Date :- 22.1.2019

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Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Babu Lal Ram, Virendra Kumar

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble B. Amit Sthalekar, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

Heard Sri Babu Lal Ram, learned counsel for the petitioners and Sri Mukesh Kumar Singh, learned counsel for the respondents no. 3&4 and the learned Standing Counsel for the respondents no.1&2.

The petitioner in the writ petition is seeking quashing of the demand notice dated 12.12.2018/15.12.2018.

On 22.01.2019 this Court has passed the following order :-

"Heard Sri Babu Lal Ram, learned counsel for the petitioner, learned Standing Counsel for the respondents no. 1 & 2 and Sri Mukesh Kumar Singh, learned counsel for the respondents no. 3 & 4.

The petitioner in the writ petition is seeking quashing of the demand notice dated 12.12.2018/15.12.2018. Earlier the petitioner filed writ petition no. 34740 of 2018 challenging the demand notice of Rs.379636/-. That writ petition was disposed of by the Court vide order dated 30.10.2018 with a direction to the Executive Engineer to decide the petitioner's objection filed under Section 6.5 of the Electricity Supply Code, 2005. According to the petitioner, she has filed her objection dated 28.11.2018 before the Executive Engineer, Electricity Power Distribution, Madhyanchal Vidyut Vitran Khand-II, District Budaun, respondent no. 3 but without passing any order a fresh demand notice, which is impugned in the present writ petition, has been issued.

Counsel for the respondents no. 3 & 4 is directed to obtain instructions in the matter as to whether petitioner's objection dated 28.11.2018 has been disposed of or not and if disposed of, what order has been passed.

Put up as fresh on 31 January, 2019 to enable the counsel for the respondents no. 3 & 4 to obtain instructions in the matter. "

Learned counsel for the respondents fairly stated before the Court that the objections submitted by the petitioner under Clause 6.5 of the Electricity Supply Code, 2005 has not been decided till date.

We, therefore, quash the demand notice dated 12.12.2018/15.12.2018 (Annexure no.7 to the writ petition) and

direct the respondent no.3-Executive Engineer, Electricity Power Distribution Madhyanchal Vidyut Vitran Nigam, Ltd. Budaun to consider and decide the petitioner's objections in accordance with law within three months from today.

The writ petition stands **allowed**.

Order Date :- 31.1.2019

JK Yadav